SUPREME COURT OF INDIA

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Criminal Appeal No. 278 of 2021

CNR: SCIN010002782021

Date: 18 March, 2021

Citation: (2021) 16 SCC 241

CORAM: Hon'ble A.M. Khanwilkar & S. Ravindra Bhat, JJ.

Petitioner: Aparna Bhat & Senior Women Advocates

- VERSUS -

Respondent: State of Madhya Pradesh & Another

DOMAIN: BAIL CONDITIONS & GENDER SENSITIVITY **STATUS: Good Law (Binding Gender Justice Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Using Rakhi tying as a condition for bail transforms a molester into a brother by a judicial fiat, trivializing sexual violence. Courts must scrupulously avoid any stereotypes, moral lecturing, or forcing contact between accused and victim in bail orders.

STATUTES APPLIED: Section 437(3) CrPC, Section 438 CrPC, Section 354 IPC

DISPOSITION: PATRIARCHAL BAIL CONDITION SET ASIDE WITH BINDING GUIDELINES

EXECUTIVE RATIO SUMMARY:

Supreme Court set aside an order directing an accused in a molestation case to tie Rakhi to the victim as a bail condition, establishing mandatory guidelines prohibiting patriarchal or compromise-inducing bail conditions in sexual offences.

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